

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 4, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	25CV463602	JP Morgan Chase Bank, N.A. vs Jonathan Cu	Motion to Quash Before the court is specially appearing defendant Jonathan Cu’s motion to quash service of summons. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Plaintiff JPMorgan Chase Bank, N.A. (“Bank”) alleges on or about September 30, 2024, defendant Jonathan Cu (“Cu”) failed to make payments in accordance with a Cardmember Agreement as agreed despite Plaintiff Bank’s demand. (Complaint, ¶BC-2). Plaintiff Bank asserts that Defendant Cu’s outstanding balance is \$5,388.65. (Complaint, ¶BC-4). On April 15, 2025, Plaintiff Bank commenced this action by filing a Judicial Council form complaint against Defendant Cu asserting a single cause of action for breach of contract. On June 9, 2025, the court clerk entered default and default judgment against Defendant Cu pursuant to a request for entry of default filed by Plaintiff Bank. On September 2, 2025, Defendant Cu filed the motion now before the court, a motion to quash service of summons. On September 5, 2025, Defendant Cu filed a separate motion to set aside and vacate entry of default judgment with a hearing date set for June 16, 2026. <u>II. LEGAL STANDARD</u> “Entry of defendant’s default instantaneously cuts off its right to appear in the action. The defendant is ‘out of court.’ It has no right to participate

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LAW AND MOTION TENTATIVE RULINGS

			in the proceedings until either (a) its default is set aside (in which event, it may respond to the complaint), or (b) a default judgment is entered (in which event, it may appeal).” (Weil & Brown et al., CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2025) ¶5:6, p. 5-2 citing <i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 Cal.App.3d 381, 385 – 386; see also <i>People v. One 1986 Toyota Pickup</i> (1995) 31 Cal.App.4th 254, 259). “Entry of default ousts the court of jurisdiction to consider any motion other than a motion for relief from default.” (<i>Id.</i> at ¶5:7, p. 5-3 citing <i>W.A. Rose Co. v. Municipal Court</i> (1959) 176 Cal.App.2d 67).
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III. ANALYSIS

As noted above, Plaintiff Bank obtained entry of default and default judgment against Defendant Cu on June 9, 2025. Consequently, the Court lacks jurisdiction to consider Defendant Cu’s motion to quash service of summons.

IV. CONCLUSION

Based on the foregoing, Defendant Cu’s motion to quash service of summons is ordered OFF CALENDAR without prejudice.

Court will prepare the formal Order.

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LAW AND MOTION TENTATIVE RULINGS

LINE 2	25CV469138	Jiaojiao Ye vs Tracy Chang et al	Demurrer Defendant Chang filed this demurrer to the complaint on September 5, 2025, the motion was accompanied by a proof of service indicating electronic service to the plaintiff on that same day. An additional proof of service via electronic service was filed on September 24, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 21, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)). Moving party meets its burden. Based on the foregoing, the Court SUSTAINS the demurrer. Moving party to prepare the formal Order.
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